

**CITY OF BOULDER
CITY COUNCIL MEETING**

Municipal Building, 1777 Broadway
Boulder, Colorado 80302
Tuesday, December 3, 2019

MINUTES

1. Call to Order and Roll Call

Mayor Weaver called the meeting to order at 6:03 p.m.

Council Members Brockett, Friend, Joseph, Swetlik, Nagle, Wallach, Yates and Young were present.

COUNCIL MEMBER FRIEND MOVED TO APPROVE THE AMENDED AGENDA THAT INCLUDES ITEM 8A – COUNCIL DIRECTION AND INPUT ON RESOLUTION 1275 COMMITTING THE CITY OF BOULDER TO PROMOTE RACIAL EQUITY IN CITY RELATIONSHIPS, PROGRAMS, SERVICES AND POLICIES. MAYOR WEAVER SECONDED THE MOTION. THE MOTION PASSED 9:0 AT 6:04 P.M.

- A. Declaration to honor Boulder companies recognized as 2019 Colorado Companies to Watch was presented by Council Member Friend.
- B. Update on Last Snowstorm by Transportation
Bill Cowern reported on the conditions of the streets and the work completed by the team.

2. Open Comment

(Public comments are a summary of actual testimony. Full testimony is available on the council web page at: <https://bouldercolorado.gov/city-council> > Watch Live or Archived Meetings.)

Open Comment began at 6:12 p.m.

- 1. Evan Ravitz spoke about online petitioning.
- 2. James Feeney spoke about dark sky ordinance enforcement.
- 3. Masyn Moyer spoke about social justice.
- 4. SarahDawn Haynes spoke about social justice.
- 5. Anna Segur spoke about social justice.

6. Shawn Rodd spoke about social justice.
7. Suzanne De Lucia spoke about council appointments and social justice.
8. Riley Mancuso spoke about social justice.
9. Stephen Haydel spoke about snow removal in Boulder.
10. Mark Gelband spoke about social justice.
11. Richard O'Brien spoke about dark skies ordinance.
12. Patrick Murphy spoke about municipalization.
13. John Spitzer spoke about municipalization.
14. Lisa Harris spoke about public participation.
15. Kathleen Hancock spoke about civil discourse.
16. Beth Hendorf spoke about social justice.
17. Claudia Hanson Thiem spoke about snow removal.
18. Cam Netherland spoke about the camping ban.
19. Lynn Segal signed up to speak but did not.
20. M. Emily Wingeier spoke about social justice, snow removal and ADUs.

Open Comment closed at 6:53 p.m.

3. Consent Agenda

- A. Consideration of a motion to approve the City of Boulder's 2020 Regional, State and Federal Policy Agenda
- B. Consideration of a motion to authorize the city manager to enter into an agreement establishing an Intergovernmental Agreement (IGA) for Automatic and Mutual Aid between Member Agencies of the Boulder Valley Fire Consortium
- C. Consideration of a motion to adjourn as the Boulder City Council and convene as the CAGID Board of Directors. Consideration of a motion to adopt Resolution 296 approving a supplemental appropriation to the 2019 Downtown Commercial District Fund (formerly Central Area General Improvement District Fund) Budget.

Consideration of a motion to adjourn from the Central Area General Improvement District (CAGID) Board of Directors and convene as the Boulder City Council

- D. Second reading and consideration of a motion to adopt Ordinance 8363 approving annual carryover and supplemental appropriations to the 2019 Budget
- E. Introduction, first reading and consideration of a motion to order published by title only, Ordinance 8364, amending Chapter 3-5, "Tax Refund Program," B.R.C. 1981, to add two new categories of qualifying applicant, comply with Federal Tax Code, and setting forth related details
- F. Introduction, first reading and consideration of a motion to order published by title only Ordinance 8370 (see Attachment C), updating transportation design standards by amending the City of Boulder Design and Construction Standards (D.C.S.), originally adopted pursuant to Ordinance 5986, and setting forth related details. Consideration of this ordinance is Phase 1 of updates to the transportation design standards of the City of Boulder
- G. Introduction, first reading and consideration of motions to order published by title only of three Ordinances:
 - (1) Ordinance 8372 amending Subsection 9-6-4(a), "Accessory Units," B.R.C.1981, to modify the roof pitch standards for existing legal accessory structures that are converted to an Accessory Dwelling Unit and to clarify existing ADU standards, and setting forth related details
 - (2) Ordinance 8373 amending Chapter 8-6, "Public Right of Way and Easement Encroachments, Revocable Permits, Leases and Vacations," B.R.C. 1981, to establish standards for public right-of-way encroachments of wireless communications facilities that are installed on buildings and to update the standards for small cell facilities in the public right-of-way, and setting forth related details; and
 - (3) Ordinance 8371 amending Chapters 10-3, "Rental Licenses," and 4-20, "Fees," B.R.C. 1981, to update short-term and longer-term rental licensing standards including the adoption of a SmartRegs in lieu fee to be paid where compliance with SmartRegs is technically impractical, and setting forth related details
- H. Introduction, first reading and consideration of a motion to order published by title only, Ordinance 8368 vacating, and authorizing the City Manager to execute a deed of vacation for a portion of a 20-foot wide alley right-of-way generally located at 2150 Folsom Street
- I. Introduction, first reading, consideration of a motion to publish by title only, and adopt as an emergency ordinance No. 8374, approving a loan, evidenced by the City of Boulder, Colorado General Obligation Waste Reduction Refunding Note, Series

2020, in the aggregate principal amount not to exceed \$3,515,000 (the “Note”) for the purpose of refunding the City’s General Obligation Waste Reduction Bonds, Series 2009 (the “Series 2009 Bonds”) at a lower interest rate; providing for the payment and cancellation of the Series 2009 Bonds, and for the payment of the Note from the same pledge of net revenues as the Series 2009 Bonds; authorizing the competitive request for lending proposals and subsequent sale of the Note to a financial institution and to pay related costs of issuance of the Note

- J. Introduction, first reading and consideration of a motion to order published by title only, Ordinance 8369 vacating and authorizing the city manager to execute a deed of vacation for two public access easements located at 3365 Diagonal Highway
- K. Introduction, first reading and consideration of a motion to order published by title only Ordinance 8375 extending a moratorium temporarily prohibiting the city manager from issuing any business license to a commercial electric scooter company and prohibiting the use of electric scooters on sidewalks, bike paths and open space until April 21, 2020; and setting forth related details

COUNCIL MEMBER BROCKETT MOVED TO APPROVE THE CONSENT AGENDA ITEMS 3A-3K. COUNCIL MEMBER WALLACH SECONDED THE MOTION. THE MOTION PASSED 9:0 AT 7:44 P.M.

- 4. Call-Up Check-In
- 5. Public Hearings

- A. Items related to the certification of the 2019 Coordinated Municipal Election
 - 1. Consideration of a motion to convene as the General Canvassing and Election Board.
 - 2. Consideration of a motion nominating a member to chair the Board.
 - 3. Consideration of a motion to approve the election returns and, if approved, signing of the Certificate of the General Canvassing and Election Board; and
 - 4. Consideration of a motion to adjourn from the General Canvassing and Election Board for the 2019 City of Boulder Coordinated Municipal Election and reconvene as the Boulder City Council

City Clerk Lynnette Beck introduced this item at 7:45 p.m.

City Clerk Lynnette Beck served as the Secretary of the General Canvassing and Election Board.

MAYOR WEAVER MOVED TO ADJOURN AS THE BOULDER CITY COUNCIL AND RECONVENE AS THE GENERAL CANVASSING AND ELECTION BOARD FOR THE CITY OF BOULDER COORDINATED MUNICIPAL ELECTION HELD

ON NOVEMBER 5, 2019. COUNCIL MEMBER NAGLE SECONDED THE MOTION. THE MOTION PASSED 3:0 AT 7:46 P.M.

Roll for the General Canvassing and Election Board (The Board) was called and the following responded: Mayor Weaver and Council Members Nagle and Young.

The Board was sworn in by Board Secretary Beck.

By acclamation, Mayor Weaver served as the Chair of the Board.

Mayor Weaver turned the meeting over to Board Secretary Beck for the following information to be presented.

1. Official Statement of Votes
2. Summary of Votes
3. Boulder County Audit, Reconciliation Report and Certification
4. Statement of Election Results and Certification for the Colorado Department of Local Affairs (DOLA)

A presentation was shown to display the ballot measures and the outcome of the election. [Note: All ballot measures passed for the City of Boulder 2019 Election.]

Board Secretary Beck noted that the official results, as well as historical information, are available on the Boulder County Elections website: <https://election.boco.solutions/ElectionResults2018G/>

The public hearing opened at 7:50 p.m. and with no speakers the public hearing closed at 7:50 p.m. about the 2019 Coordinated Municipal Election:

BOARD MEMBER NAGLE MOVED TO APPROVE THE ELECTION RETURNS FROM THE 2019 COORDINATED MUNICIPAL ELECTION HELD ON NOVEMBER 5, 2019 AND TO ADJOURN FROM THE GENERAL CANVASSING AND ELECTION BOARD AND RECONVENE AS THE BOULDER CITY COUNCIL. MAYOR WEAVER SECONDED THE MOTION. THE MOTION PASSED 3:0 AT 7:51 P.M.

6. Matters from the City Manager

- A. Update to City Council on City-Wide Special Events, including consideration of two pending special event applications for the 2020 Colorado Classic Women's Pro Road Bicycle Road Race and the 'Boulderthon' marathon running race

City-Wide Special Events Coordinator Mike Eubanks introduced the item at 7:52 p.m. He discussed several events for the upcoming year.

COUNCIL MEMBER YATES MOVED TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH THE COLORADO CLASSIC TO HOST THE 2020 STAGE RACE WITHIN THE CITY LIMITS OF BOULDER AND PROVIDING UP TO \$25,000 IN CITY SUPPORT AND SERVICES FOR THE EVENT AND REQUESTING THE BOULDER CONVENTION AND VISITORS BUREAU TO CONTRIBUTE UP TO \$10,000 IN LODGING SUPPORT WITH AMENDMENT TO INCLUDE THE COMMITMENT OF THE CITY MANAGER TO PROVIDE NOTICE TO COUNCIL OF THE BIKE RACE. COUNCIL MEMBER WALLACH SECONDED THE MOTION. THE MOTION PASSED 9:0 AT 8:23 P.M.

COUNCIL MEMBER YATES MOVED TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH BOULDERTHON TO HOST THE 2020 MARATHON RACE WITHIN THE CITY LIMITS OF BOULDER, INCLUDING USE OF THE MULTI-USE PATHS. COUNCIL MEMBER WALLACH SECONDED THE MOTION. THE MOTION PASSED 9:0 AT 8:23 P.M.

- B. Staff briefing regarding the 2020 Mid-Term Update of the Boulder Valley Comprehensive Plan, including process, schedule, and scope.

Assistant City Manager and Interim Planning Director Chris Meschuk introduced the item at 8:24 p.m. Senior Planner Jean Gatza and Comprehensive Review Manager Jim Robertson showed a presentation.

No action.

- 7. Matters from the City Attorney

- 8. Matters from the Mayor and Members of Council

- A. Council discussion and input on Resolution 1275- Committing the City of Boulder to promote racial equity in city relationships, programs, services and policies

Council Member Young introduced this item at 8:54 p.m.

This is a product of the G.A.R.E work that is being done within the city, along with the upcoming Racial Equity Plan.

This item will return to council for public hearing and adoption on December 17, 2019.

- B. Consideration of a motion to approve 2020 committee and subcommittee assignments and discussion of sharing mayoral responsibilities

2020 Council Committee and Board Assignments

INTERGOVERNMENTAL ORGANIZATIONS	
[Rocky Mountain] Greenway Steering Committee	Nagle, Castillo (staff alt)
Boulder County Consortium of Cities	Swetlik, Wallach (alt)
Colorado Municipal League (CML) – Policy Committee	Weaver, Joseph, Castillo (staff alt)
Denver Regional Council of Governments (DRCOG)	Brockett, Joseph (alt)
Metro Mayors Caucus	Weaver
National League of Cities (NLC)	Friend, Joseph, Swetlik, Wallach, Weaver, Yates, Young
Resource Conservation Advisory Board (RCAB)	Swetlik
Rocky Flats Stewardship Council	Weaver, Nagle (alt), Castillo (staff 2 nd alt)
US 36 Mayors/Commissioners Coalition (MCC)	Weaver
Commuting Solutions	Nagle, Friend (alt)
Mile High Flood District (Gubernatorial appointment)	Yates
State Highway 119 Coalition	Brockett, Swetlik (alt)
State Highway 7 Coalition	Brockett, Swetlik (alt)
INTERNAL CITY COMMITTEES	
Audit Committee	Swetlik, Wallach, Yates
Boards and Commissions Committee	Brockett, Nagle
Charter and Elections Committee	Friend, Nagle, Young
Council Retreat Committee	Young, Yates
Council Employee Evaluation Committee	Weaver, Young
Intergovernmental Affairs Committee	Brockett, Friend, Joseph, Wallach, Weaver, Yates
Financial Strategy Study Committee	Yates, Young, Joseph
Hill Revitalization Neighborhood Committee (ongoing)	Friend
CU South Process Sub-Committee (ongoing)	Friend, Weaver
Guiding Coalition for Racial Equity (ongoing)	Brockett, Friend, Joseph, Swetlik, Young
Alpine-Balsam County Participation Sub-Committee (ongoing)	Yates, Wallach, Joseph
LOCAL BOARD MEMBER APPOINTMENTS	
Boulder Museum of Contemporary Art (BMoCA) Board	Brockett
Boulder Convention and Visitors Bureau Board	Yates, Swetlik (alt)
Dairy Arts Center Board	Wallach
Downtown Business Improvement District Board	Wallach, Yates
LOCAL TERM BOARD MEMBER APPOINTMENTS (to be appointed during annual March recruitment)	
Boulder Housing Partners (Mayoral appointment)	Wallach
Colorado Chautauqua Association	Young
SISTER CITY LIAISONS	
Dushanbe, Tajikistan	Yates
Jalapa, Nicaragua	Brockett
Kathmandu, Nepal	Wallach
Kisumu, Kenya	Nagle
Llisa, Tibet	Friend
Mante, Mexico	Young

Nablus, Palestine	Yates
Ramat HaNegev, Israel	Nagle
Yamagata, Japan	Swetlik
Yateras, Cuba	Joseph
Sister City Sub-Committee	Friend, Swetlik

9. Discussion Items
10. Debrief
11. Adjournment

THERE BEING NO FURTHER BUSINESS TO COME BEFORE COUNCIL AT THIS TIME, BY MOTION REGULARLY ADOPTED, THE MEETING WAS ADJOURNED ON DECEMBER 3, 2019 AT 10:05 P.M.

Approved this 21st day of January 2020.

APPROVED BY:



 Sam Weaver, Mayor

ATTEST:



 Lynnette Beck, City Clerk